

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SYEEDAH MCKENZIE,

Plaintiff,

- against -

CITY OF NEW YORK; Police Officer Harry Cai, Shield
#6705 individually and in his official capacity; Police Officer
Andrew Nyberg, Shield #03026 individually and in his official
capacity,

Defendants.
-----x

Index No.:

Date Filed:

S U M M O N S

Plaintiff designates New York
County as the place of Trial
The basis of Venue is
CPLR 504(3)
Plaintiff resides at
2643 Broadway NY NY

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy
of your answer on the plaintiff's attorney within twenty (20) days after service of this summons, exclusive
of the day of the service of this summons, within thirty (30) days after service of this summons is
complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons a judgment by default will be taken against you
for the relief demanded in the Verified Complaint together with the costs of this action.

Dated: New York, New York
October 9, 2021


LAYTON LAW FIRM, PLLC
Paul Thomas Layton, Esq.
Office & P.O. Address
40 Wall Street, 28th Floor
New York, New York 10005
(646) 402-4811

Defendants Addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer Harry Cai, Shield #6705
One Police Plaza, New York NY

Police Officer Andrew Nyberg, Shield #03026
One Police Plaza, New York NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
SYEEDAH MCKENZIE,

Index No.

VERIFIED COMPLAINT

Plaintiff(s),

-against-

CITY OF NEW YORK; Police Officer Harry Cai, Shield #6705 individually and in his official capacity; Police Officer Andrew Nyberg, Shield #03026 individually and in his official capacity,

Defendant(s).
-----X

Plaintiff, SYEEDAH MCKENZIE, by her attorneys, The Layton Law Firm, PLLC
complaining of Defendant(s), alleges, upon information and belief, as follows:

1. At all times hereinafter mentioned, defendant, CITY OF NEW YORK was and is a municipal corporation duly existing under the laws of the State of New York.
2. Defendant, the CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK.
3. At all times relevant, defendant the CITY OF NEW YORK employed the police officers whose names are currently unknown and who were involved in the matters hereinafter alleged.
4. At all times hereinafter mentioned, the police officers involved in the matters hereinafter alleged were acting within the scope of their employment as police officers with the Police Department of The City of New York (hereinafter "NYPD").

5. At all times hereinafter mentioned police officers involved in the matters hereinafter alleged were acting under color of law and authority as police officers with the NYPD.
6. On December 29, 2020, Plaintiff, SYEEDAH MCKENZIE duly served a Notice of Claim upon The City of New York in the manner and mode required by law.
7. That on April 20, 2021, Plaintiff appeared for a hearing pursuant to General Municipal Law 50-h.
8. That thirty days have elapsed since the service of said Notice of Claim and Plaintiff's claims have not been adjusted or paid.
9. That this action is brought within one year and ninety days from the date of occurrence complained of herein.
10. That Plaintiff has complied with all conditions precedent applicable to the instant action.
11. On or about October 11, 2020, Plaintiff SYEEDAH MCKENZIE was a resident in New York City housing located at 2643 Broadway, in the City and State of New York, County of New York.
12. At approximately 3 pm on October 11, 2020 the individually named defendant police officers arrived at 2643 Broadway, in the County of New York, City and State of New York.
13. Both individually named officers entered the premises at 2643 Broadway and went upstairs to the second floor and into room 2A where the Plaintiff was located.
14. Defendant Police Officer Andrew Nyberg, Shield #03026 informed Plaintiff that

she was being taken to a hospital for an evaluation and medication and Police Officer Nyberg placed handcuffs upon the Plaintiff very tightly and pulled on Plaintiff's wrists.

15. Plaintiff made exclamations of pain because of the tight handcuffs but the handcuffs were not adjusted by either of the individually named police officer defendants.
16. In the presence of the individually named defendants, while handcuffed inside of Room 2A at 2643 Broadway, she and a supervisor of the residence had a verbal disagreement about her being taken by the police to a hospital.
17. Defendant Police Officer Harry Cai, Shield #6705 slammed Plaintiff who was in handcuffs into the wall and choked the Plaintiff while repeatedly stating " Oh you going to cooperate with me."
18. The Plaintiff was escorted by the individually named defendant police officers from the second floor of the residence to the main floor of the residence.
19. Defendant Police Officer Harry Cai, Shield #6705 slammed the Plaintiff into the wall while she was handcuffed and on the steps. she was again slammed into the wall and choked by Defendant Police Officer Harry Cai, Shield #6705.
20. Defendant Police Officer Harry Cai, Shield #6705 choked the Plaintiff while she was handcuffed and on the steps.
21. Plaintiff continued to complain about her painful handcuffing and her efforts to move her hands to relieve the pain was met by her being forced down onto a chair on the first floor by the defendant police officers.
22. Defendant Police Officer Harry Cai, Shield #6705 put Plaintiff into a chokehold and

asked Plaintiff “Are you going to cooperate?” Are you going to sit down in the chair?”

23. Plaintiff was transported to a hospital and remained in handcuffs for at least another 20 minutes while at the hospital.

**FIRST CAUSE OF ACTION
ASSAULT and BATTERY**

24. On October 11, 2020, while Plaintiff, SYEEDAH MCKENZIE, was lawfully at 2643 Broadway, in the County of New York, City and State of New York, she was placed in handcuffs which were applied excessively tightly by police officers who were employees, agents and/or servants of defendant, CITY OF NEW YORK.
25. On October 11, 2020, while Plaintiff, SYEEDAH MCKENZIE, was lawfully at 2643 Broadway, in the County of New York, City and State of New York the handcuffs which were applied to the Plaintiff were allowed to remain upon the Plaintiff’s wrist in an excessively tight manner for an excessive amount of time was by police officers who were employees, agents and/or servants of defendant, CITY OF NEW YORK.
26. On October 11, 2020 although Plaintiff, SYEEDAH MCKENZIE, expressed that she was in pain due to the excessively tight handcuffs the handcuffs were not adjusted or loosened to prevent her pain and injuries.
27. On October 11, 2020, while Plaintiff, SYEEDAH MCKENZIE was lawfully at 2643 Broadway, in the County of New York, City and State of New York she was choked by a police officer employed by the City of New York without provocation.

28. On October 11, 2020, while Plaintiff, SYEEDAH MCKENZIE was lawfully at 2643 Broadway, in the County of New York, City and State of New York she was repeatedly pushed head first into a wall at the premises by police officers employed by the City of New York without provocation.
29. As a result of the above mentioned unprovoked assaults and battery, plaintiff, SYEEDAH MCKENZIE, was injured.
30. As a result of the above mentioned unprovoked assaults and battery, plaintiff, SYEEDAH MCKENZIE, was seriously injured.
31. As a result of the foregoing, Plaintiff, SYEEDAH MCKENZIE demands judgment against defendant(s) CITY OF NEW YORK in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**SECOND CAUSE OF ACTION
42 U.S.C. Section 1983 Excessive Force against
Individually Named Defendants**

32. Plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “31” as if more fully set forth herein.
33. The actions of defendants heretofore described constitute the use of excessive force in violation of Plaintiffs' civil rights.
34. Defendants violated Plaintiff's civil rights under the Fourth Amendment.
35. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.
36. By tightly handcuffing the Plaintiff; by refusing to loosen her handcuffs, by choking

the Plaintiff; by otherwise causing physical injuries to Plaintiff's head and wrist, the individually named officers used excessive force in violation of the 4th Amendment of the United States Constitution.

WHEREFORE, Plaintiff demands judgment against defendants in a sum of money which exceeds the limits of any court of lower jurisdiction.

Dated: New York, New York
October 9, 2021

Yours, etc.

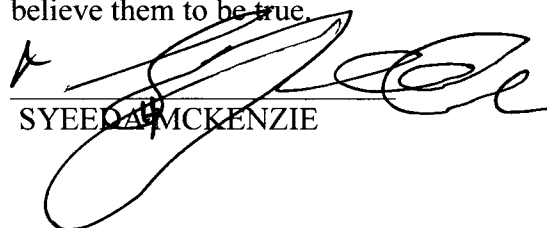
A handwritten signature in black ink, appearing to read 'P. Layton', is written over a horizontal line.

Layton Law Firm, PLLC
By: Paul Thomas Layton, Esq.
Attorneys for Plaintiff
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646-402-4811
laytonlaw10007@gmail.com

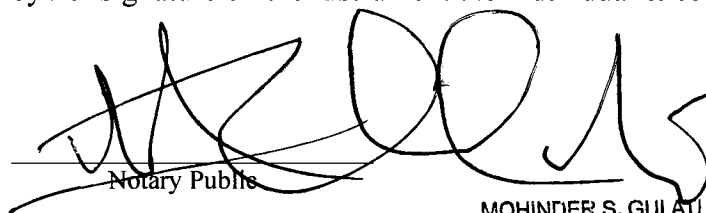
VERIFICATION

SYEEDA ~~M~~MCKENZIE, being duly sworn, deposes and says:

I am the Plaintiff in the above-entitled action. I have read the foregoing Verified Complaint and know the contents thereof. The same is true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matter, I believe them to be true.


SYEEDA ~~M~~MCKENZIE

On the ⁹ day of October, 2021 before me, the undersigned personally appeared SYEEDA ~~M~~MCKENZIE, personally known to me or proved to me on the basis of satisfactory evidence, to be the individual whose named is inscribed in the within instrument and acknowledged to me that she executed the same in her capacity, and that by her signature on the instrument the individual executed the instrument.


Notary Public

MOHINDER S. GULATI
Notary Public, State of New York
No. 01GU4659357
Qualified in New York County
Commission Expires Nov. 30, 2022

State of New York
County of New York

SUPREME COURT OF THE STATE OF NEW YORK
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SUMMONS AND VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130.1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York
October 10, 2021



LAYTON LAW FIRM, PLLC
by Paul Thomas Layton, Esq.

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